

Case Summary

Parties Involved: Accused, Additional Advocate General, Arvind Khanna Supra, BLE MR, Bhajan

Case Laws Referenced: Paras 10, Section 34, Section 448, Section 482, Section 482 Cr

Jurisdiction: Dhruvaram Murlidhar Sonar Supra, Dineshbhai, H.P., Kaptain, Kasauli, Market, P.O.

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369 BEFORE HON BLE MR. JUSTICE SATYEN VAIDYA, J. Naresh

Kumar and ors.. Petitioners Versus State of H.P. and ors. Respondents For
the petitioners Mr. Guna Nand Verma, Advocate. For respondents

No.1to3 Mr. Desh Raj, Thakur, Additional Advocate General. For

respondent No.4 Mr. I.S. Chandel, Advocate. No. 31 of 2021 Reserved

on 20.12.2022 Decided on 30.12.2022 Code of Criminal Procedure,

1973 - Section 482 - Inherent power - Quashing of FIR - Indian Penal

Code, 1860 - Sections 448, 323, 325 and 34 - Two cross FIRs regarding

the dispute that had arisen with respect to the possession of Shop no. 13 -

Allegations of forcible dispossession and infliction of injuries - Held- FIR not

meant to contain all the details - Only recording of information in respect of

the cognizable offence - FIR Cannot be quashed - No merit - Petition

dismissed. State of Uttar Pradesh and others 2021 9 SCC 35; The

following judgment of the Court was delivered Satyen Vaidya, Judge

Heard. Shimla, H.P. against the present petitioners under Section 448,

323, 325 and Section 34 of IPC and all further proceedings including I L R

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judicial proceedings, if any, arising out of it may be quashed and set

aside..